PER CURIAM.

The writ of certiorari is dismissed as improvidently granted.

It is so ordered.

JUSTICE SOTOMAYOR, with whom JUSTICE JACKSON joins, concurring.

I concur in the Court's decision to dismiss the writ of certiorari as improvidently granted. I write separately for two reasons. First, based on the evidentiary record and how this litigation proceeded below, I explain why the Court should not and cannot use this case to address how courts must analyze multiple IQ scores under *Atkins* v. *Virginia*, 536 U. S. 304 (2002). Second, I point out how the principal dissent's discussion of this Court's precedents and the scientific consensus about how courts should evaluate multiple IQ scores is incomplete and potentially misleading.

Page Proof Pending Publication

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In 1998, Joseph Smith was convicted of first-degree murder. At his sentencing hearing, Smith introduced evidence of intellectual disability, including an IQ score of 72 and testimony from the test's administrator explaining that the test's standard error of measurement indicated Smith's IQ could

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Solicitor General, and *Christopher Henry*; and for the America First Legal Foundation by *Christopher E. Mills* and *Daniel Z. Epstein.*

Briefs of *amici curiae* urging affirmance were filed for the American Association on Intellectual and Developmental Disabilities (AAIDD) et al. by *Ann M. Delpha* and *James W. Ellis*; for the American Psychological Association et al. by *Melissa Arbus Sherry, Peter A. Prindiville, Deanne M. Ottaviano,* and *Aaron M. Panner*; and for Katie Kronick by *Andrew T. Tutt.*

Kent S. Scheidegger filed a brief for the Criminal Justice Legal Foundation as *amicus curiae.*